

IN THE SENATE

SENATE BILL NO. 1294, As Amended

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO HEARING LOSS SCREENING; AMENDING CHAPTER 9, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-905A, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING HEARING LOSS SCREENING; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 9, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-905A, Idaho Code, and to read as follows:

39-905A. HEARING LOSS SCREENING. (1) In addition to other tests required by this chapter, all infants and newborns shall be screened for hearing loss prior to discharge from a hospital, health care facility, or birthing facility. For births occurring outside of a hospital, health care facility, or birthing facility, the birthing attendant shall ensure that the infant or newborn is screened for hearing loss or is referred to a hearing screening facility to be screened for hearing loss no later than twenty-one (21) days from the date of birth.

(2) The hearing loss screening required by this section shall employ physiologic screening methods approved by the Idaho educational services for the deaf and the blind (IESDB), including otoacoustic emissions or automated auditory brainstem response.

(3) The screening facility or provider shall report the results of all failed hearing screenings to the IESDB within seven (7) days and all other results monthly to ensure appropriate follow-up and early intervention.

(4) All tests and screenings required by this section shall be performed in accordance with standards, schedules, and protocols established or approved by the IESDB. The IESDB may provide guidance or educational materials to assist providers in carrying out the requirements of this section.

(5) The provisions of this section are contingent on continued receipt of federal funding intended to support infant and newborn hearing screening and shall not be enforceable if the loss of such federal funding would result in an increased cost to the state.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.